

NOTICE OF EXEMPTION Filing of Notice of Exemption in Compliance with Section 15061(b)(3) of the California Environmental Quality Act- Resolution of Necessity – Acquisition of Land for Wastewater Disposal		AFFIDAVIT OF FILING AND POSTING Court Records Supervisor Office of the County Clerk I declare that I received and posted this notice on the filing date as required by California Public Resources Code Section 21152(c). Said Notice will remain posted for 30 days from the filing date.	
TO: COUNTY CLERK County of Kern, 1115 Truxtun Ave. 1 st Floor, Bakersfield, CA 93301		FROM: City of Arvin City Clerk, P.O. Box 548 200 Campus Drive, Arvin, CA 93203 661-854-3134 Office, 661-854-0817 Fax	
TO: ceqasubmit.opr.ca.gov		SCH Number:	
Project title: Resolution of Necessity – Acquisition of Land for Wastewater Disposal			
Project location: Southeast Corner of Millux Road and Rancho Drive. APN: APN 446-010-0400-5 Size: 74.82 Acres Township/Range: T32S R29E Section 3 Latitude and Longitude: 35.17944° N /118.75248° W Nearest Railroad: Southern Pacific Rail Nearest State Hwy: Hwy 223 Nearest School: Arvin High School			
Description of nature, purpose, and beneficiaries of project: The City of Arvin is in the process of acquiring land in the vicinity of its Wastewater Treatment Facility. The acquisition of the land will allow compliance with the California State Water Control Boards Requirements related to the City's Wastewater Treatment Facility. This action will support the goal of the City Council in ensuring operations of city facilities are maintained.			
Name of public agency approving project:		■ City Council The project approved by the City Council on September 24, 2024 – Resolution of Necessity for Property Located at the SE Corner of Millux Road and Rancho Drive	
Name and person or agency carrying out the project:		City of Arvin, City Manager/Finance Director 200 Campus Drive, Arvin, CA 93203, Email: Jeffjones@arvin.org Phone: 661-854-3134	
Exempt status:		General Rule Exemption (Sections 15061 (b) (2) and (3) AND Categorical Exempt Activity Section 15325 /B)- Acquisition, sale, or other transfer areas to allow continued agricultural use of the areas	
Reasons why the project is exempt: The land acquisition meets the exemption criteria pursuant to California Environmental Quality Act (CEQA) Guidelines, Chapter 18.04 CEQA Implementation and Environmental Clearance and Resolution No. 2022-08 CEQA Implementation Guidelines. Pursuant to Title 14 of the California Code of Regulations, Sections 15061 (b) (2) and (b)(3), that this project is exempt from the requirements of the California Environmental Quality Act (CEQA) in that it is not a project which has the potential for causing a significant effect on the environment. This project and the associated project approvals are exempt from review under the California Environmental Quality Act ("CEQA") pursuant to CEQA Guidelines Section 15061(b)(2) and (3) because it can be seen with certainty that there is no possibility that it will have a significant effect on the environment, as the proposed project is merely a transfer of ownership with no other changes to the land or use. In addition, the project is exempt pursuant to Section 15325, Class 25 (Transfers of Ownership of Interest in Land to Preserve Existing Natural Conditions and Historical Resources), subsection (b)- as the acquisition will allow the continued agricultural use of the area. The project is also not located next to any scenic highway or resources, nor is located on a hazardous waste site which is included on any list compiled pursuant to Section 65962.5 of the Government Code. Finally, there are no structures on the site that could qualify as historical resources. The project will not have a significant adverse impact on a historic resource. The Notice of Exemption is to be filed with Kern County Clerk in accordance with the City of Arvin's Guideline for the implementation of CEQA and with the State of California – CEQA Submit. For all the foregoing, including evidence in the administrative record, the City Planner recommends the City of Arvin adopts a Class 3 Categorical Exemption under CEQA Guidelines section 15301- Existing Facilities and 15061(b)(1) and (b)(3).			
Contact person:		Jake Raper, Project Coordinator, 200 Campus Drive, Arvin, CA 93203 Email: jrpaer@arvin.org Phone: 805-234-7908	
Signature/Title/ Date:		<i>Jeffrey Jones</i> , City Manager/Finance Director, DATE: September 25, 2024	
Record available to General Public: This is to certify that the environmental document and record of project approval is available to the General Public at City of Arvin, City Clerk's Office, 200 Campus Drive, Arvin, California, 93203. This Notice of Exemption and its supporting documents may be reviewed/obtained during normal working hours at the above address. The filing of a Notice of Exemption and the posting on the list of notices start a 35-day statute of limitations period on legal challenges to the agency's decision that the project is exempt from CEQA. If a Notice of Exemption is not filed, a 180-day statute of limitations will apply. Refer to Section 15061(d) for filing instructions.			